

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: August 05, 2026

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#	Case Name	Tentative
0.	2025-1514475 Toner vs. Aurora Heights, LLC	<i>No tentative. The Court has questions for counsel. Counsel are ordered to arrange for a court reporter to be present for the hearing.</i>
1.	2024-1383020 Bigalimov vs. Alsulaiman	Plaintiff Rolan Bigalimov's motion for reconsideration is denied. Plaintiff moves for reconsideration of the 2/25/26 minute order (ROA 131), whereby the Court denied Plaintiff's motion to set aside or vacate the "order of dismissal" taken from Plaintiff's ruling on Defendants' demurrer to Plaintiff's First Amended Complaint (ROA 84). When an application for an order has been "refused in whole or in part," a party seeking reconsideration under subsection (a), can make an application to "modify, amend, or revoke the prior order." The application must be made "to the same judge or court" within "10 days after service upon the party of written notice of entry of the order." The application must be "based upon new or different facts, circumstances, or law." Additionally, the application must be accompanied by an affidavit, stating "what application was made

before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008, subd. (a).)

Here, the Court notes that it lacks jurisdiction to grant reconsideration of the 02/25/26 minute order, because an Order of Dismissal was entered on or about 01/05/26 (ROA 124). A court loses jurisdiction to grant reconsideration once an order of dismissal (or a judgment) has been entered. (*APRI Ins. Co. v. Superior Court* (1999) 76 Cal.App.4th 176, 181 “we conclude that the trial court may not grant reconsideration after judgment has been entered”). The Court’s order of dismissal constitutes a judgment. (*Ibid.*)

Second, even if the Court retained jurisdiction to grant reconsideration, Plaintiff fails to present any new or different facts, circumstances, or law that warrant reconsideration. Plaintiff’s argument amounts to “the court misconstrued the (existing) law.” (The Court omits the less respectful choice of words that Plaintiff used in his motion.) However, reconsideration “cannot be granted based on claims the court misinterpreted the law in its initial ruling (as opposed to a change in the law in the interim.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 9:330.2, citing *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

The Court emphasizes, though, that it rejects Plaintiff’s contention that the ruling at issue is incorrect. In the ruling on the demurrer to the FAC, Plaintiff was given leave to amend as to the claims for intentional infliction of emotional distress and defamation/slander/libel. (ROA 84.) Thereafter, Plaintiff filed the SAC whereby he re-alleged his claims for defamation, slander, and libel, as well as intentional infliction of emotional distress. (ROA 96.) If Plaintiff had wanted the ruling on the demurrer to the FAC to become the equivalent of a final judgment, then his “remedy” was to elect *not* to amend (i.e., not file a FAC). (*National Union Fire Ins. Co. of Pittsburgh, PA v. Cambridge Integrated Services Group, Inc.* (2009) 171 Cal.App.4th 35, 44.) Because Plaintiff *elected* to amend, the court’s ruling on the demurrer to the FAC did not become a final judgment. While the Court did eventually enter an order of dismissal, this was following Defendants’ demurrer to the SAC (not the FAC).

Finally, plaintiff’s disagreement with prior rulings does not justify unsupported accusations concerning the integrity or motives of judicial officers. The Court has disregarded those accusations and ruled on the legal merits of the motion. Defendants shall give notice of the ruling.

2.	2024-1380763 Arellano vs. General Motors, LLC	The motion by Plaintiff Salvador Arellano (“Plaintiff”) for attorneys’ fees and costs is granted. The Court exercises its discretion to consider Plaintiff’s reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Civil Code section 1794, subdivision (d) provides as follows: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” There is no dispute that Plaintiff is the prevailing party and entitled to recover Plaintiff’s costs, including fees, pursuant to section 1794, subdivision (d). The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) The Court may make its determination of the value of the services rendered without the necessity of expert testimony. (<i>Id.</i> at 1096.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (<i>Id.</i>) The party seeking an award of fees is not necessarily entitled to compensation for the value of attorney services according to his own notion or to the full extent claimed by him. (<i>Levy v. Toyota Motors Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 815-816.) The moving party instead has the burden of showing that the fees sought were allowable, reasonably necessary to the conduct of the litigation, and reasonable in amount. (<i>Id.</i>, at 816.) Courts apply a lodestar method to calculate reasonable attorneys’ fees. (<i>Meister v. U.C. Regents</i> (1998) 67 Cal.App.4th 437, 448-449.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25.) A reasonable fee is determined in the trial court’s discretion. (<i>PLCM Group</i>, 22 Cal.4th at 1095.) To determine reasonable attorneys’ fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney’s efforts, the intricacies and importance of the litigation,
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the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 659.)

McKenzie v. Ford Motor Company (2015) 238 Cal.App.4th 695, 703 provides:

“The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of time spent and the amount charged.... ‘It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.’ ... [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817–818, 50 Cal.Rptr.3d 731.)

The fees incurred in preparing a motion for fees are properly includable in the award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, 104 Cal.Rptr.2d 377, 17 P.3d 735 [“an attorney fee award should ordinarily include compensation for *all* the hours *reasonably spent*, including those relating solely to the fee”].) (*Id.*)

A reasonable hourly rate reflects the skill and experience of the lawyer, including any relevant areas of particular expertise, and the nature of the work performed. (*Hensley v. Eckerhart* (1983) 461 U.S. 424, 433-434.)

The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. (*PLCM Group*, 22 Cal.4th at 1094.) This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight

	contingent fee basis, or are in house counsel. (<i>Id.</i> [emphasis added].) “Affidavits of the Plaintiff’s attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the Plaintiff’s attorneys are satisfactory evidence of the prevailing market rate.” (<i>United Steelworkers of America v. Phelps Dodge Corp.</i> (9th Cir. 1990) 896 F.2d 403, 407.) Defendant did not object to Plaintiff’s requested hourly rates. The Court finds the requested hourly rates of \$350 to \$695 are reasonable. In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass’n</i> (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i>) Additionally, moving party’s counsel’s verified time records should be “entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.) However, the Court “may not rubber stamp a request for attorney fees, but must determine the number of hours <i>reasonably</i> expended.” (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271.) Plaintiff submitted Plaintiff’s attorneys’ time entries to support Plaintiff’s request, which Plaintiff’s counsel contends he reviewed for accuracy and voluntarily reduced. (Barry Decl., ¶¶ 17-20, Exhibit 4.) Based on the Court’s review of the papers submitted in support and in opposition to this motion, the procedural history of this case, and the time entries Defendant put at issue, the Court finds that Plaintiff reasonably incurred \$33,354.50 in attorneys’ fees. The Court declines to award a multiplier. Defendant contends Plaintiff’s requested costs should be reduced. However, Defendant did not file a motion to tax or strike costs. “Delay (or failure) to challenge a costs bill waives any objection to the costs claimed thereon.” (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th
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		287, 290.) In addition, Defendant’s request is untimely. (Cal. Rules of Ct., Rule 3.1700(b).) Defendant’s request is denied. Plaintiff’s motion for fees is granted. Plaintiff is awarded \$33,354.50 in attorneys’ fees and \$2,246.28 in costs. Plaintiff shall give notice.
3.	2024-1403454 Giziotis vs. Volkswagen Group of America, Inc.	Trial motions to be ruled on at a later date.
4.	2024-1412353 Mitchell vs. Carrasco	Case Management Conference, only.
5.	2025-1529277 National Funding, Inc. vs. Golden Construction, LLC	Plaintiff National Funding, Inc.’s motion for summary judgment on its complaint for breach of contract against defendants Charles Sanders and Golden Construction, LLC is denied. Defendant’s evidentiary objection to para. 3 and Ex. 2 of the Muren Declaration is sustained on hearsay grounds. The parties’ remaining objections are all overruled. <u>Legal Standard</u> Under Code of Civil Procedure section 437, a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1). “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” <i>Id.</i> For summary adjudication of a claim of damages, other than punitive damages, that does not entirely dispose of a cause action, defense, or issue of duty the parties must comply with Code of Civil Procedure section 437c(s)(1). A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal. 4th 826, 850. “A prima facie showing is one that is

		sufficient to support the position of the party in question.” <i>Id.</i> at 851. Where a plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. Code Civ. Proc. § 437c(p)(1); <i>S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.</i> (2010) 186 Cal. App. 4th 383, 388. This means that a plaintiff who bears the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. <i>LLP Mortg. v. Bizar</i> (2005) 126 Cal.App.4th 773, 776. At that point, the burden shifts to the defendant “to show that a triable issue of one or more material facts exists as to that cause of action.” Code Civ. Proc. § 437c(p)(1). The moving party’s affidavits are strictly construed while those of the opposing party are liberally construed. <i>Villacres v. ABM Industries, Inc.</i>, 189 Cal.App.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. <i>Id.</i> <u>Discussion</u> “A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.” <i>Miles v. Deutsche Bank National Trust Company</i> (2015) 236 Cal.App.4th 394, 402. With the Otero and Muren Declarations, Plaintiff has made a prima facie showing of on each element of its breach of contract the claim: - the contract [Otero Decl., ¶ 4 and E. 1; Muren Decl., ¶ 2]; - performance [Otero Decl., Ex. 1]; - breach [<i>id.</i>, pp 5-7 and Ex. 2]; and - damages. [<i>Id.</i>, ¶ 7 and Ex. 2.] With the Sanders Declaration, however, Defendants have shown a triable issue of fact as to, at least, the existence of the contract and breach. [Sanders Decl., ¶¶ 2-4.] Accordingly, the motion for summary judgment is denied.
6.	2023-1356203 Guo vs. Zhang	<u>Demurrer</u> Defendant Bo Zhang’s demurrer to Plaintiff Liao Guo’s Second Amended Complaint is overruled. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and

incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

Defendant demurs to Plaintiff's first cause of action for quiet title on the grounds that Plaintiff fails to state the adverse claims to title pursuant to Code Civ. Proc., § 761.020.

Plaintiff alleges in ¶ 28 that Defendant has an adverse claim to Plaintiff's interest, as he claims full ownership of the subject properties.

At the pleading stage, this is sufficient. Defendant does not assert any additional arguments in his demurrer.

The Court additionally finds that Defendant's demurrer is untimely. The Second Amended Complaint was filed and served on 10/16/25; thus, Defendant's deadline to demur expired on 11/18/25. The demurrer was not filed until 2/24/26. (See Code Civ. Proc., § 430.40(a).)

The Court thus overrules Defendant's demurrer for both of the reasons stated above. (See *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749.)

Motion to Strike

Defendant Bo Zhang's motion to strike Plaintiff's claim for attorney fees in her Second Amended Complaint is granted.

Plaintiff expressly does not oppose this, stating in the opposition that she inadvertently included the claim for attorney fees in the Second Amended Complaint and agrees to withdraw it.

Given Plaintiff's concession, the Court hereby strikes the claim for attorney fees without leave to amend.

Plaintiff shall give notice of both rulings.

7.	2025-1492523 Terry vs. Jaguar Land Rover North America, LLC	The demurrer of defendants Jaguar Land Rover North America, LLC (“JLRNA”) and Jaguar Land Rover Mission Viejo to the first amended complaint (“FAC”) of plaintiffs J. Lonnie and Joyce Terry is overruled. [ROA # 88. Defendants’ motion to strike is denied. <u>Plaintiffs’ FAC</u> This is a Song-Beverly action. Plaintiffs assert six causes of action: (1) violation of Civ. Code §1793.2(d) against JLRNA; (2) violation of Civ. Code §1793.2(b) against JLRNA; (3) violation of Civ. Code §1793.2(a)(3) against JLRNA; (4) breach of implied warranty of merchantability against JLRNA; (5) negligent repair against the dealership; and (6) fraudulent inducement – concealment against JLRNA. Plaintiffs allege that on 8/9/18 they bought a 2018 Jaguar F-PACE. [FAC, ¶ 7.] Prior to purchase, Plaintiffs reviewed Defendant JLRNA’s marketing and advertising materials, viewed JLRNA’s vehicle-specific window sticker, and took the Vehicle for a test drive. But at no point prior to purchase was Plaintiffs advised the Vehicle and its 3.0-liter engine were defective. [FAC, ¶ 11.] Beginning on 8/6/19, Plaintiffs took the vehicle in for work numerous times for a number of reasons. [FAC, ¶¶ 15-26.] Asserting the discovery rule, equitable tolling, and the repair doctrine, Plaintiffs allege they did not become suspicious of Defendant’s concealment of the latent defects and its inability to repair it until shortly before the filing of the complaint, when the issue persisted following Defendant’s representations that the Vehicle was repaired and/or working as designed. [FAC, ¶ 47.] Plaintiff always acted diligently in presenting the Subject Vehicle for repairs and following the directives of Defendant’s authorized repair personnel. Defendant was under a continuous duty to disclose to Plaintiff the true character, quality, and nature of the Defendant Vehicles suffering from the Defects, and the inevitable repairs, costs, time, and monetary damage resulting from the Defects. Due in part to Defendant’s failure to do so, Plaintiff was unable to discover Defendant’s wrongful conduct alleged herein until the issues persisted following Defendant’s attempts to conform the Vehicle to its warranties. [<i>Id.</i>, ¶¶ 48-49.] Further, Plaintiffs allege, Defendant undertook to perform various defects repair measures in the form of TSBs and recalls. During the time in which Defendant represented to Plaintiff that the Vehicle
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was fixable and attempted to fix it, the warranty period may thus have been tolled. Plaintiff discovered Defendant's wrongful conduct alleged herein after the Vehicle continued to exhibit symptoms of defects following Defendant's unsuccessful attempts to repair them. However, Defendant failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act. [FAC, ¶¶ 54-55.]

Demurrer

Legal Standard

A demurrer can be used only to challenge defects that appear within the "four corners" of the pleading – which includes the pleading, any exhibits attached and matters of which the court is permitted to take judicial notice. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. Limited to the "four corners" as such, a pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.

On demurrer, a complaint must be liberally construed. Code Civ. Proc. § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601. All material facts properly pleaded, and reasonable inferences, must be accepted as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.

First through Fourth Causes of Action – Statute of Limitations on Warranty Claims

Defendants demur to the first four causes of action on the ground that they are barred by the six-year statute of repose in Code of Civil Procedure Section 871.21(a). This statute was enacted as of 1/1/25.

Again, Plaintiff bought the vehicle on 8/9/18; they filed their original complaint on 6/24/25.

"Statutes of repose effect a legislative judgment that a defendant should be free from liability after the legislatively determined period of time." *PGA W. Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 176 (quoting *CTS Corp. v. Waldburger* (2014) 573 U.S. 1, 8). A statute of repose is, therefore, "harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded." *Id.* (quoting *McCann v. Foster Wheeler LLC* (2010) 48 Cal.4th 68, 78 n.2); *see also Inco Dev. Corp. v. Superior Ct.* (2005) 131 Cal.App.4th 1014, 1020 ("A statute of repose has nothing to do with the date of injury, but bars all suits after the expiration of a specified time from the manufacture or

delivery of a product.”). Further, unlike statutes of limitations, “substantive statutes of repose are generally not subject to statutory equitable tolling.” *PGA W. Residential Assn., Inc., supra*, 14 Cal.App.5th at 221.

In opposition, Plaintiff argues that the retrospective application of this statute violates their due process rights, citing to *Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122-23, in which the Court held: “where the change in remedy, as, for example, the shortening of a time limit provision, is made retroactive, there must be a reasonable time permitted for the party affected to avail himself of his remedy before the statute takes effect. If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.”

The only other court thus far that has rendered a published opinion on this issue is *Galdamez v. FCA US LLC* (C.D.Cal. 2026) --- F.Supp.3d ---; 2026 WL 1047004. While Federal District Court opinions are not binding, they can be persuasive.

In *Galdamez*, the District Court held that because of the presumption against retroactive application and the fact that there is no indication via the legislative history that the statute was intended to apply retroactively, the motion for judgment on the pleadings pursuant to Section 871.21 should be denied. The District Court stated:

The California Supreme Court has explained that in the absence of a clear legislative intent to the contrary, statutory enactments apply only prospectively. *Evangelatos v. Superior Ct.*, 44 Cal. 3d 1188, 1193–94, 246 Cal.Rptr. 629, 753 P.2d 585 (1988); *Quarry v. Doe I*, 53 Cal.4th 945, 139 Cal.Rptr.3d 3, 272 P.3d 977, 981 (2012) (“In construing statutes, there is a presumption against retroactive application unless the Legislature plainly has directed otherwise by means of express language of retroactivity or ... other sources that provide a clear and unavoidable implication that the Legislature intended retroactive application.”); *Niagara Fire Ins. Co. v. Cole*, 235 Cal. App. 2d 40, 42–43, 44 Cal.Rptr. 889 (1965) (“[A] statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations.... Even when applied prospectively, the claimant must be allowed a

reasonable time within which to proceed with his cause of action.”) (citation omitted).

Galdamez v. FCA US LLC (C.D. Cal., Mar. 23, 2026, No. 2:25-CV-10618-HDV-MAR) 2026 WL 1047004, at *2.

This court finds the *Galdamez* analysis persuasive. Accordingly, the demurrer to these causes of action is overruled.

Fifth Cause of Action for Negligent Repair

The fifth cause of action is against Defendant Jaguar Land Rover Mission Viejo for negligent repair.

The elements of negligence are “(1) a legal duty to use due care; (2) a breach of such legal duty; [and] (3) the breach as the proximate or legal cause of the resulting injury.” *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.

Defendants demur to Plaintiffs’ fifth cause of action on two grounds. First, Defendants contend Plaintiffs fail sufficiently to allege a claim for negligent repair because they do not allege facts rather than conclusions. Second, Defendants contend Plaintiffs’ action for negligent repair is barred by the economic loss rule.

Failure to State

Plaintiffs allege that “Jaguar Land Rover Mission Viejo breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” [FAC ¶ 84.]

This is the pleading of ultimate facts – which is all that is necessary at this point.

As a well-regarded practice guide has stated: “Ordinarily, negligence may be alleged in general terms, without stating the acts constituting negligence or detailing the particular manner in which plaintiff’s injury occurred.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 6:129.)

Reading the FAC liberally, as the court must, Plaintiffs have alleged the essential elements, including damages, for negligent repair. [FAC, ¶ 85.] That is sufficient for pleading purposes. The rest is a matter for discovery.

Economic Loss Rule as Applied to Negligence Cause of Action

According to Defendants, the economic loss rule precludes recovery in tort where a plaintiff's damages consist solely of economic loss. Additionally, tort claims are barred "when they arise from — or are not independent of — the parties' underlying contracts." *Sheen v. Wells Fargo Bank, N.A.*, 12 Cal.5th 905, 923-24 (2022) (citing *Robinson*, 34 Cal.4th at 991; *Erlich v. Menezes*, 21 Cal.4th 543, 551, 552 (explaining that "[t]ort damages have been permitted in contract cases" when "the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm").

But the economic loss rule does not act as an *absolute* bar to tort recovery in every case in which the parties have a contractual relationship. Courts generally permit tort suits if the defendant allegedly violated a duty rooted in tort principles that is independent of the parties' contractual rights and obligations and exposed the plaintiff to a risk of harm beyond the parties' reasonable contemplation when they entered into the contract. The ability to recover for an independent tort is a fundamental principle that our courts have broadly applied even where the economic loss rule is not directly implicated.

Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 23 (footnote omitted).

The court in *North American Chemical* explained: "[F]or over fifty years California has also recognized the fundamental principle that '[a]ccompanying every contract is a common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done, and a negligent failure to observe any of these conditions is a tort, as well as a breach of contract.'" *North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 774. "A contract for the performance of services, as we have already discussed, necessarily carries with it both the reasonable expectation and implied at law promise that it will be performed with reasonable care." *Id.* at 785.

Having found the existence of a duty sufficient to support a negligence claim, the court in *North American Chemical* proceeded, in a separate portion of the opinion, to hold that the economic loss rule did *not* apply to service contracts, where the economic loss was foreseeable (a *Biakanja* factor.) *Id.* at 770.

But even if the economic loss rule applied to an action for negligently performed services provided pursuant to contract, that does not make it applicable here. *Sheen v. Wells Fargo Bank, N.A.*

(2022) 12 Cal.5th 905, 922, 923-925 (finding tort claims for monetary losses between contractual parties are barred by the ELR when they arise from or are not independent of the parties' underlying contracts).

Plaintiffs assert a claim for negligent repair by the dealer, which is not alleged to be based on any contract with the dealer for services. And while the gravamen of the claim is apparently that the dealer failed to repair Plaintiff's vehicle *to conform to warranty*, so that the claim arises from and is dependent on the warranty contract, the dealer is not the one that issued the warranty. What the complaint, as alleged, says is simply that Villa Ford "breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards." [FAC, ¶ 62.]

The demurrer to the fifth cause of action is overruled.

Sixth Cause of Action for Fraudulent Concealment

The elements of fraud are: "(a) [a] misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or "scienter"); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638; *see also Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.

Specific to a fraudulent concealment or omission claim, the plaintiff must allege: (1) the defendant concealed a material fact; (2) the defendant had a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed fact; and (5) as a result of the concealment of the fact, the plaintiff sustained damage. *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 748.

There are four circumstances in which concealment/omission may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. *Limandri v. Judkins* (1997) 52 Cal.App.4th 326, 336-337; CACI 1901.

"In California, fraud must be pled specifically; general and conclusory allegations do not suffice." *Lazar, supra*, 12 Cal.4th 631, 645, citing *Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 74. "This particularity requirement necessitates pleading *facts* which

‘show how, when, where, to whom, and by what means the representations were tendered.’ *Id.* In cases against corporate employers, “the plaintiff must ‘allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.’” *Id.*, citing *Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.

If the duty to disclose arises from the making of representations that were misleading or false, then those allegations should be described. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC, supra*, 162 Cal.App.4th 858, 877–878, 76 Cal.Rptr.3d 325.) However, as noted above (*ante* in fn. 18 on p. 294), plaintiffs have apparently abandoned their earlier claims of intentional and negligent misrepresentations. As plaintiffs accurately respond, it is harder to apply this rule to a case of simple nondisclosure. “How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?”

Alfaro v. Community Housing Improvement System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384, *as modified on denial of reh’g* (Mar. 18, 2009)

Defendant JLRNA demurs to Plaintiffs’ fraudulent concealment cause of action on two grounds. First, JLRNA contends that Plaintiffs have not alleged fraudulent concealment with sufficient specificity. Second, JLRNA contends that Plaintiffs have not alleged a transactional relationship that gives rise to a duty to disclose.

Duty to Disclose/Direct Transaction or Contract

The court in *Bigler-Engler, Inc.* (2017) 7 Cal.App.5th 276, held that:

“A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as ‘seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual arrangement.’” *Id.* at 311.

“Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a ‘transaction’ between the plaintiff and defendant: ‘In *transactions* which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff.’” (*Id.* at 311). “Such a

transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” *Id.* at 312.

In *Bigler-Engler*, no seller and buyer or contractual relationship existed between the plaintiff and manufacturing defendant. *Id.* at 314. There, the manufacturing defendant sold medical devices to the doctor defendant several years before the plaintiff rented one of the manufacture’s devices from the doctor’s office. *Id.* Therefore, the manufacturing defendant had no contact with the plaintiff, did not know plaintiff was a potential user of their products or used the device, and did not derive any direct monetary benefit from the plaintiff’s rental of the device. *Id.*

Conversely, here, Plaintiffs do allege a relationship with JLRNA, because they entered into a warranty agreement. Unlike in *Engler*, the warranty is provided directly from JLRNA to Plaintiffs. While Plaintiffs did not deal with JLRNA itself, they dealt directly with its authorized dealership as the agent of Defendant JLRNA.

Further, the court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844 directly addressed the issue and found that a car buyer need not allege a contract with the manufacturer in order to allege a duty to disclose:

Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient. Plaintiff alleges that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.

Dhital, supra, 84 Cal.App.5th 828, 844. Review of *Dhital* was dismissed on December 18, 2024, following the issuance of *Rattagan*. (*Dhital v. Nissan North America* (2024) 327 Cal.Rptr.3d 898 (Mem). *Dhital* therefore is controlling authority regarding fraudulent inducement claims. Cal. Rule of Court 8.528(b)(1).

Here, Plaintiffs allege that prior to purchasing the vehicle they reviewed Defendant JLRNA’s marketing and advertising materials,

		viewed JLRNA's vehicle-specific window sticker, and took the vehicle for a test drive. [FAC, ¶ 11.] This is not a lot. But these allegations give rise to the inference that Plaintiffs relied on Defendant's representations about the vehicle in deciding to purchase it – whether directly or through its authorized agent. The court finds this sufficient to allege a transactional relationship giving rise to a duty to disclose. As for concealment, Plaintiffs allege in some detail Defendant's prior knowledge of the engine defect, intentionally limited repairs, and lack of disclosure to the public and Plaintiffs themselves. [FAC, ¶¶ 92-114.] This is sufficient. Accordingly, the demurrer to this cause of action is overruled. <u><i>Motion to Strike</i></u> Punitive damages are permissible in a tort action "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." Civ. Code § 3294(a). Fraud is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." Civ. Code § 3294(c)(3). When assessing a challenge to punitive damages via a motion to strike, a court must determine whether the complaint "states facts sufficient" to show that the defendant is "guilty of oppression, fraud or malice." <i>Turman v. Turning Point of Cent. California, Inc.</i> (2010) 191 Cal. App. 4th 53, 63. But here, Defendants unsuccessfully challenged the fraudulent concealment cause of action. The FAC sufficiently alleges a cause of action for fraud for the reasons stated above. Accordingly, the motion to strike punitive damages is denied.
8.	2025-1529712 Lorton vs. Peak Power Solutions, Inc.	<u><i>Demurrer</i></u> Defendants Peak Power Solutions Inc., Richard Matthew Stoutenburg, Dave Shanholtzer, Cheryl Andrea Stoutenburg's Demurrer is sustained as to the sixth cause of action for declaratory relief only in Plaintiffs Michael Lorton, Nicole Lorton, Lucas Lorton, and Jacob Lorton's Complaint. The remainder of the Demurrer is overruled. Moving Defendants are ordered to answer the Complaint within 20 days.

The meet and confer effort is sufficient. The parties are at an impasse.

Statute of Limitations (SOL)

Moving Defendants argue that the SOL has run on every claim because the Complaint acknowledges that any work done by Peak Power Solutions on Plaintiffs' Property was done in 2012. (Compl., ¶9.)

This argument is based on extrinsic facts and inferences that the Court can neither consider nor make.

In 2012, Plaintiffs contracted with Peak Power to install a solar panel system on the roof of their property at 22675 Ledana, Mission Viejo, CA 92691, including related roofing work. As part of the contract, Defendants provided a 20-year transferable guarantee against water leaks in the roof area worked on, issued by Guardian Roofs (the "Warranty" or "20-year Roof Warranty"). (Compl., ¶9, Ex. A.)

Plaintiffs allege that "Defendants' concealment of faulty workmanship on the solar panel installation" was not discovered until **around December 4, 2023**, when a roofing inspection revealed concealed debris and defects beneath the solar panels. This discovery established the root cause of the mold as roof leaks from the faulty solar panel installation by Defendants Peak Power and Guardian Roofs. (Compl., ¶12.)

Moving Defendants argue that there should be no delayed discovery because Plaintiffs were on notice of defects immediately following completion of the roof and solar panel system installations, since Plaintiffs could or would have had the installations inspected upon completion. Moving Defendants reason that Plaintiffs allege the removal of two 55-gallon bags of debris and 80 extra tiles that were stacked around the entire solar array, which Plaintiffs attribute as the source of their alleged damages and injuries. (Compl. ¶¶ 20-21.)

Specifically, Defendant reason that "City inspectors, if not Plaintiffs, would have identified defective or improperly performed work during final inspections in 2012, during the statute of limitations period." (Reply, p. 1:26-28.) "Moreover, if private roofers were able to identify such defects and debris nearly fourteen years after the fact, City inspectors would have similarly identified such upon completion of work in 2012." (Reply, p. 2:26-28.)

But the Court cannot make these assumptions in Defendants' favor on demurrer. The complaint must be "liberally construed, with a

view to substantial justice between the parties.” (CCP § 452; *see Stevens v. Sup.Ct. (API Ins. Services, Inc.)* (1999) 75 Cal.App.4th 594, 601.) Where allegations are subject to different reasonable interpretations, court must draw “inferences favorable to the plaintiff, not the defendant”. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1238.)

On reply for the first time, Defendants argue that the Court must judicially notice the Building Permit pulled for this work showing that the final inspection was April 20, 2012. (RJN, Exs. A and B.) Using this new evidence provided on reply, Moving Defendants argue that despite at least four official inspections by the City on April 20, April 26, May 1, and May 3, 2012, Plaintiffs maintain that their claims are timely and actionable under the delayed discovery rule.

The Request is denied as it was presented on reply with no opportunity for a response.

Moreover, even if considered, the scope of the inspections cannot be adjudicated by a document showing dates of inspections.

Thus, the Court must accept as true the allegations of delayed discovery and fraudulent concealment clearly made in the Complaint.

Moving Defendants also argue that the Complaint admits that the Guardian Roof Defendants installed the roof and issued the warranty and thus are responsible. But this too ignores the properly pled factual allegations in the Complaint about Moving Defendants’ bad acts, which the Court must accept as true on demurrer.

Finally, Moving Defendants take issue with allegations regarding “Defendants”. However, in conjunction with the background facts and the alleged dispute between Defendants as to who did the installation in this case, these allegations are sufficient.

Thus, the Demurrer to the first through fifth causes of action are overruled.

Declaratory Relief

Declaratory relief claims are used “to obtain a judicial declaration on the rights and duties of the parties under a contract.” (*City of Tiburon v. Northwestern Pac R.R. Co.* (1970) 4 Cal. App. 3d 160, 170.)

Moving Defendants argue that declaratory relief is not a tool to redress past wrongs but instead operates prospectively to settle

controversies before they escalate to a repudiation of obligations, invasion of rights, or the commission of wrongs. (*Travers v. Louden* (1967) 254 Cal.App.2d 926, 931; *Monterey Coastkeeper v. Central Coast Regional Water Quality Control Bd.* (2022) 76 Cal.App.5th 1, 13—“declaratory relief operates to declare future rights, not to address past wrongs”.)

In opposition, Plaintiffs argue that an actual controversy exists regarding the parties’ rights and duties under the 20-year roof warranty and the 2012 contract. (Complaint ¶¶ 106, 110.)

Here, in this claim, Plaintiffs seek an adjudication that a warranty exists, but this is already pled in the first cause of action for breach of contract to address past wrongs.

Thus, the Demurrer is sustained to this cause of action. Plaintiffs have not shown how they can amend.

Motion to Strike

Defendants seek to strike a litany of factual allegations, punitive damages, and attorney’s fees. The Motion is granted as to attorney’s fees only; the remainder is denied.

The Code allows a motion to strike on the ground that the pleadings contain “irrelevant, false, or improper matter” or where the pleadings are drawn in violation of a law, rule or court order. (CCP § 436.) But falsity must appear on the face of the pleading under attack, or from matters which the court may judicially notice (e.g., the court’s own files or records). (CCP § 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 Cal.App.4th 1014, 1032.)

To get around the factual disputes, Moving Defendants argue that the facts alleged are conclusory, specifically because the Complaint admits the Peak Power installed the solar panels and not the roof. But this ignores that the Complaint allege that Peak Power intentionally concealed substantial construction debris (broken tiles, shingles, nails, and paper) under the solar panels, and the stacking of extra tiles to obstruct inspection and discovery. (See e.g. Compl., ¶¶ 10, 20, 93–97, 100–101.)

Moving Defendants next argue that “Defendants” are lumped together. But the facts specifically allege Defendants’ conduct in the background section.

Punitive Damages

Defendants seek to strike punitive damages in the two fraud claims.

“When the plaintiff alleges an intentional wrong, a prayer for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure. [Citation.] When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. [Citations.]” (*Smith v. Superior Ct.* (1992) 10 Cal. App. 4th 1033, 1041.)

In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: “[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Sup.Ct. (Pedus Services, Inc.)* (1998) 67 Cal.App.4th 1253, 1255.)

Here, Plaintiffs allege that Defendants were not just negligent in their construction work and lied about a warranty (putting it in another company’s name improperly). (Compl., ¶¶12, 20, 26, 54, 100.) The Court finds sufficient facts are alleged at the pleadings stage.

Attorney’s Fees

Code of Civil Procedure § 1021 codifies the “American rule” that each party must bear the expense of its own attorney’s fees. 14 Cal.5th at 417. (*Java Oil Ltd. v Sullivan* (2008) 168 Cal.App.4th 1178, 1189–1192 (California courts may enforce foreign money judgments that automatically award attorney’s fees to successful litigant, e.g., under “English rule” that generally requires loser to pay winner’s attorney’s fees; these awards are not contrary to California public policy)).

Here, Plaintiffs argue in opposition that Civil Code §1717 provides for attorney’s fees when provided for in a contract. But there is no allegation of any contract containing an attorney’s fees clause. Thus, the request for attorney’s fees is stricken.

Moving Defendants are ordered to serve notice.